ELECTRONIC COMMUNICATION MANAGEMENT

WyIT - 1002

PURPOSE: To ensure agencies managing internal IT infrastructure maintain an IT change management practice, minimize risk to agency business, and maintain compliance with statewide security policies, standards, and procedures.

I. APPLICABILITY

This policy applies to all Executive Branch agencies, boards, and commissions staff (collectively referred to as "agencies"). This policy is also applicable to consultants, affiliates, and temporary employees.

II. DEFINITIONS

All definitions for this policy are located in the Policy Dictionary.

III. EXCEPTIONS

Any exceptions provided to the following policy must abide by WyIT - 3002 - Security Exception Request policy.

IV. ELECTRONIC COMMUNICATION CONTROLS

A. Monitoring and Access

- The State of Wyoming:
  - Owns all electronic communication data and reserves the right to specify and control its use.
  - Reserves the right to inspect all email-related data at any time as authorized by statute or policy.
- Requests to access or monitor an employee's email account:

- Must have the approval of the Director or designee, and
- Authorization of the Attorney General's Office.

B. Account Delegation

- Upon employee termination or an inter-agency transfer, delegated access to the employee's email account may be granted to the employee's successor or appropriate management as determined by the originating agency.
- If the originating agency denies a request to transfer an account, a new account will be created for the employee at the new agency following the naming convention standard.

C. Official Records

- All documents created in, sent by, or attached to electronic mail may constitute official records of the State of Wyoming and may be subject to public information requests.
- To the extent that email constitutes a "record" for records management purposes, there may be State statutes or other policies affecting its use and maintenance.
- Email that has been identified in any court or regulatory proceedings as having a high likelihood of imminent litigation shall remain available for discovery until the legal hold has been removed. In all situations where this section applies, an email system administrator must be notified immediately.

D. Retention of Public Records

- Email content created or received in the course of conducting State of Wyoming business will be retained and maintained in an alternative format as prescribed by state and agency records retention schedules.

E. Revoking Access

- Access to the email system may be denied by:
  - The owning agency, or
  - ETS if determined a violation of policy or abuse has occurred.

V. ACCEPTABLE USE

A. Authorized Access

Agencies may grant employees access to enterprise email and instant

messaging to carry out assigned duties. Access for non-state employees shall be granted only with the approval of the agency director or designee.

B. Personal Use

- The State of Wyoming's email system is to be used primarily for legitimate state business purposes.
- Incidental personal use is acceptable if it does not unreasonably impact the employee's work performance or the ability to conduct State of Wyoming business activities and does not compromise system security.

VI. UNACCEPTABLE USE

A. The following uses are prohibited:

- Illegal Activities - Any illegal or wrongful conduct is prohibited. Any information or knowledge regarding illegal actions will be provided to the Attorney General, Division of Criminal Investigation, or appropriate law enforcement agency.
- Intellectual Property Infringement - Inclusion of copyrighted material in email that violates copyright laws is prohibited.
- Discrimination and Harassment - The use of the email and instant messaging system to transmit data that is disparaging or harassing to individuals or groups will not be tolerated. This includes but is not limited to, writings, drawings, jokes, or any other form of data that is degrading or harassing to others based on an individual's race, religion, color, sex, national origin, age, or disability.
- Insensitive or Profane Language - Users must not send messages containing offensive, derogatory, profane, or abusive language.
- Objectionable Material - Users must not use the system to distribute pornography, malicious code, or illegal software.
- Interference with System Operation - Any use that seriously and unduly affects system functionality is prohibited. This includes, but is not limited to, intentional misuse of group addresses, forwarding chain letters, sending SPAM messages, email bombs, initiating denial of service attacks, or other forms of cyber terrorism.
- Use of Other Accounts - The use of another user's account or intentionally falsifying an identity to send or receive communications (identity theft) is prohibited.
- Personal Gain - The system may not be used for personal, commercial ventures, or other personal gains.

- Religious or Political Use - Using the system for the promotion of religious or political causes or endorsement of candidates is prohibited

REFERENCES

- Wyoming §§ 40-21-101 — 40-21-119
- IRS Publication 1075, Safeguards for Protecting Federal Tax Returns and Return Information
- Health Insurance Portability and Accountability Act (HIPAA)
- Minimum Acceptable Risk Standards for Exchanges (MARS-E) 2.0 Framework
- Family Education Rights Privacy Act (FERPA)
- Payment Card Industry – Data Security Standards (PCI-DSS)
- Criminal Justice Information Services (CJIS)
- Children's Online Privacy Protection Act (COPPA)

SUPERSEDED POLICIES: This policy supersedes the policies listed below.

- 03400-P010, Electronic Mail Management Policy, dated July 05, 2015
- 03400-S010, Electronic Mail Management Standard, dated July 05, 2015

DOCUMENT HISTORY

ORIGINAL SUBMISSION				
SUBMITTED ON	**SUBMITTED BY**	**APPROVED BY**	**APPROVED BY DATE(S)**	**EFFECTIVE DATE**
June 2024	ETS Governance, Risk and Compliance	Public Comment Period	06/14/2024 - 06/28/2024	July 2024

REVISIONS		
LAST REVISION DATE	**LAST REVISED BY**	**LAST APPROVED BY**

REVIEWS		
LAST REVIEW DATE	**LAST REVIEWED BY**	**NEXT REVIEW DATE**